

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 8, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	21CV391687	Oswald Campeato vs JiaHua Huang et al	Motion for Attorney's Fees and Cost Scroll down to Line 1 for Tentative Ruling.
LINE 2	24CV430173	Lee (aka Lit) Leong vs Ashley A. Lopez	Motion for Sanctions OFF CALENDAR. On March 26, 2026 the parties notified the court of a settlement agreement and moving party withdrew motions.
LINES 3-4	24CV431877	Robert Hayter, II vs Bella Nguyen	Motion to Compel Response to Form Interrogatories (Line # 3) and Motion to Compel Responses to Request for Production of Documents (Line #4); Sanctions Scroll down to Lines 3-4 for Tentative Ruling.
LINE 5	24CV448600	Ian Anderson vs Wells Fargo Bank	Petition to Compel Arbitration Scroll down to Line 5 for Tentative Ruling.
LINE 6	24CV449214	Quynh Tran vs City of San Jose	Motion for Summary Judgment/Adjudication Scroll down to Line 6 for Tentative Ruling.
LINE 7	24CV452024	Danielle Stanton vs Mehus Construction, Inc.	Motion to Compel Further Responses to Request for Production; Sanctions Scroll down to Line 7 for Tentative Ruling.
LINE 8	25CV467501	Juvenal Plancarte vs General Motors	Motion to Compel Deposition Under Code of Civil Procedure 871.26; Sanctions Scroll down to Line 8 for Tentative Ruling.
LINE 9	25CV482065	Theresa Perry vs Emergency Housing Consortium et al	Motion to Strike Fraudulent Attorney's Lien and Compel Settlement Disbursement Scroll down to Line 9 for Tentative Ruling.
LINE 10	26CV497702	Baoxin Ling vs Miro Holdings, LLC dba Topi Cake	Petition For Writ of Mandate This petition is CONTINUED to September 10, 9:00 a.m. in Department 1.

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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	21CV391687	Oswald Campesato vs Jiahua Huang et al	Hearing: Claim of Exemption Parties to appear.

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9:00 A.M.

Calendar Line # 1

Case Name Oswald Campesato vs JiaHua Huang et al

Case No. 21CV391687

Motion for Attorney's Fees and Cost

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case arises from a wrongful eviction action by tenant/Plaintiff Oswald Capesato ("Capesato") against landlord/Defendants JiaHua Huang and Jane Wang (collectively "Defendants"). Plaintiff Capesato filed a Complaint against the Defendants on November 24, 2021, which included nine causes of actions, including allegations of wrongful evidence, nuisance, negligence, and sexual harassment. (Compliant). Defendants filed a cross-complaint for damages and defamation against the plaintiff. (Cross-Compliant and Amended Cross-Complaint). On or around February 27, 2024, a default judgment was entered against the defendants and in favor of the plaintiff in the amount of \$458,875.03. On August 20, 2024, the Honorable Eric Geffon set aside the defaults.

In September 2025, parties executed a binding written settlement agreement disposing of all claims at a mandatory resettlement conference. On October 22, 2025, a stipulation for an entry of judgment was filed in the amount of \$50,000.00 that was filed on December 23, 2025, and authorized by the Honorable Deen and filed January 8, 2026.

B. RELEVANT PROCEDURAL BACKGROUND

On January 12, 2026, an abstract of judgment was recorded, which created a judgment lien against the real property, a residence located at 10197 Finch Avenue, Cupertino, California, 95014. ("Subject Property"). On February 17, 2026, the plaintiff filed a writ of execution of the money judgment by sale of real property, the residence located at 10197 Finch Avenue, Cupertino, California, 95014. On or around May 11, 2026, the Santa Clara County Sheriff's levied upon the Subject Property.

On June 18, 2026, parties appeared for the hearing on the claim of exemption, which the Court posted a tentative order finding that the Order for Claim of Exemption is limited to \$746,640.00 and the plaintiff is allowed to proceed with the levy.

C. PRESENT MOTION

Before the Court is Plaintiff's post judgment motion for attorney's fees and cost that was filed on June 12, 2026. The motion was accompanied by a proof of service indicating mail service to Defendants.

On August 27, 2026, Defendants filed an "Amended Response and Request to Vacate Motions, Levy, and Sale Proceedings," which the Court will consider Defendants' opposition to Plaintiff's motion.

The Court has carefully reviewed the Plaintiff's notice of motion and memorandum of points and authorities ("MPA") (totaling 6 pages); Declaration of Brian D. Liddicoat and attached Exhibits A-C in support of the moving papers (totaling 8 pages); 06/12/2026 Memorandum of Costs (totaling 6 pages); 08/31/2026 Memorandum of Costs (totaling 2 pages); Defendant's Response (totaling 7 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure, section 685.070, subdivision (a): "The judgment creditor may claim under this section the following costs of enforcing a judgment: . . . (6) Attorney's fees, if allowed by Section 685.040." Code of Civil Procedure section 685.040 provides that a "judgment creditor is entitled to the reasonable and necessary

costs of enforcing a judgment.” Attorney’s fees incurred in enforcing a judgment are expressly excluded unless otherwise provided by law. (*Id.*) Attorney’s fees that are incurred in enforcing a judgment are collectible as costs “if the underlying judgment includes an award of attorney’s fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of section 1033.5” which allows for attorney’s fees when authorized by contract. (*Id.*; Code Civ. Proc., § 1033.5, subd. (a)(10)(A)).

Further, Code of Civil Procedure, section 685.080 subdivision (b) requires that:

The notice of motion shall describe the costs claimed, shall state their amount, and shall be supported by an affidavit of a person who has knowledge of the facts stating that to the person's best knowledge and belief the costs are correct, are reasonable and necessary, and have not been satisfied. The notice of motion shall be served on the judgment debtor. Service shall be made personally or by mail.

Recoverable costs include, but are not limited to those listed in Code of Civil Procedure section 685.070. (Code Civ. Proc., § 685.080, subd. (a).) In addition, a motion for costs under Section 685.080 must be filed before the judgment is satisfied in full but not later than two years after the costs have been incurred. (*Id.*) Allowable costs under Code of Civil Procedure section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774). If attorney’s fees are awarded, the Court must consider the fair market value based on the particular action. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). “The reasonable hourly rate is that prevailing in the community for similar work.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095). “[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate . . . ” (*Ketchum v. Moses, supra*, 24 Cal.4th at 1134). The lodestar method is based on several factors, as relevant to each particular case: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (*Id.* at 1132).

III. ANALYSIS

Here, Plaintiff seeks motion for attorney’s fees and cost in the total amount of \$13,575.91 against Defendants for enforcing a judgment. (Motion, p. 2).

As a preliminary matter, the court notes that the parties executed a stipulated judgment to resolved the case for \$50,000.00 that was filed on December 23, 2025, and authorized by the Honorable Shella Deen and filed January 8, 2026. Under Code of Civil Procedure section 685.080, the motion is timely as it was filed before the judgment is satisfied in full, but not later than two years aft her costs have been incurred. The noticed motion also sufficiently set for the amount and was supported by an affidavit of Plaintiff’s counsel who has the best knowledge and belief the costs are correct, reasonable and necessary, and not satisfied. The motion was served by mail. (Code of Civ. Proc., 685.080 (a)-(b)). Thus, the Court considers the merits of the motion.

Plaintiff seeks fees and costs post judgment under Civil Code section 1717 and asserts that Plaintiff/judgment creditor is entitled to reasonable and necessary costs for enforcing a judgment under Code of Civil Procedure section 685.040 et seq. (Motion, at p. 3). The total amount of \$13,575.91 that Plaintiff seeks is comprised of: \$7,500.00 in attorney’s fees for Plaintiff’s counsel Brian Liddicoat for 15 hours of work at the hourly rate of \$500.00. Plaintiff filed a memorandum of costs seeking \$6,075.91, which is comprised of: \$200.00 in filing and motions fees, \$470.62 in service of process, \$723.29 in electronic filing fees, and \$4,682.00 in sheriff and title fees. (06/12/26 Memorandum of Costs; Motion, p. 5). The Court notes that Plaintiff filed an untimely memorandum of

costs on August 31, 2026 seeking an additional \$682.00 in litigation title reports. (08/31/26 Memorandum of Costs). Thus, Defendants seek \$6,757.91 in costs and \$7,500.00 in attorney's fees.

In opposition, Defendants essentially seek to vacate and the motions and judgements and raise a panoply of objections including: the defendant living below rent, making false claims, "engaging [in] non-stop legal stalking from grift fraud to extortion," challenge the basis of the writ, challenge service, efforts by Defendants to make payments despite having no income, lack of understanding of the levy process, Defendant Wang's severe physical limitations, unauthorized withdrawals and alleged impersonation by Plaintiff, lack of notice of motions, dispute that attorney's fees are automatic, extreme limited housing and financial services, request for cancellation or substantial reconsideration of the amount claimed for the fallen tree and requesting damages, reduction of the property's condition and value, overassessment of the house, comparable value of the property, and concerns regarding sale of the property. (Opposition, p. 1-5).

The Court notes that Defendants fail to cite any persuasive or applicable legal authority to oppose the present motion for attorney's fees and cost. There is no responsive motion to address Defendants' memorandum of costs. Defendants instead submit hearsay statements without verified evidence. Moreover, the Defendants essentially seek to relitigate motions that were already decided through its response, which is improper and nonresponsive to the motion at hand. In regards to service, Plaintiff has submitted proof of service via U.S. mail delivery to Defendants and notice is deemed proper. Further, on July 7, 20206, both parties were present and this motion was set to be heard on September 8, 2026, 9:00 a.m. in Department 1. (July 7, 2026, Minute Order).

However, Plaintiff seeks to collect attorney's fees for enforcing a judgment, but the underlying judgment was by stipulation of the party and does not include a vehicle for attorney's fees. The stipulated judgment executed by the parties and filed on December 23, 2025, and authorized and filed on January 8, 2026 by the Honorable Shella Deen. The parties stipulated to \$50,000.00 in resolution of the claim. There is an express agreement that: ***"Per stipulation of the Parties, this \$50,000 judgment includes any agreed amount for Plaintiff's attorneys fees through judgment as well as sums due Plaintiff from any award of monetary sanctions in this case."*** (01/08/26 Stipulated Judgment)(emphasis added). The portion stating attorney fee and costs are left blank. (*Id.*). Thus, the Court does not find a contractual basis or agreement awarding attorney's fees in the underlying stipulated judgment executed by the parties. Accordingly, Plaintiff's request for attorney's fees in the amount of \$7,500.00 is DENIED.

As to costs, Plaintiff filed two memorandum of costs on June 1, 2026 for \$6,075.91 and August 31, 20206 for \$682.00, for a total of \$6,757.91 post judgment costs that were expended to enforce the judgment. Aside from a list of costs for services, the Plaintiff fails to provide any invoices or dates. The Court finds \$87.98 for "Process Server: Serve Notice of Levy on All Other" to be vague and fails to show it was a reasonably necessary cost. The Court finds the August 31, 2026 memorandum of costs deficient for lack of prove up and finds it was untimely filed. Further, the first memorandum of costs sets for litigation title reports for the same amount of \$682.00 and without any invoice, dates, and further accounting, Plaintiff has failed to establish that this is nonduplicative, reasonable, and necessary. The cost listed as "4,000.00 2x \$2,00 Sheriff Fees (2x Parcels)" is also vague and there is not showing that the duplicate amounts were reasonably necessary. There is no further explanation or proof of as to why two parcels were listed and dates. Accordingly, the Court reduces costs in the amount of \$2,769.98.

IV. CONCLUSION

Based on the foregoing, the Court DENIES the motion for attorney's fees in the amount of \$7,500.00.

The Court GRANTS the motion for costs it the amount of \$4,669.93.

The Court will prepare the formal Order.

Calendar Lines #3- 4
Case Name Robert Hayter, II vs Bella Nguyen et al.
Case No. 24CV431877
Motion to Compel Response to Form Interrogatories (Line # 3) and Motion to Compel Responses to Request for Production of Documents (Line #4); Sanctions
I. <u>BACKGROUND</u> A. BRIEF FACTUAL SUMMARY This case stems from a slip-and-fall incident, wherein Plaintiff Robert Hayter, II filed a Complaint for a single cause of action for negligence on February 26, 2024. B. RELEVANT PROCEDURAL SUMMARY Before the Court is defendant Bella Nguyen’s (“Nguyen”) motion to compel Plaintiff Robert Hayter, II’s (“Hayter”) responses to request for form interrogatories (“FROG”), set one (Line # 3) and request for production of documents (“RFPD”), set one (Line # 4), and sanctions. On December 3, 2024, Defendant asserts to have served initial discovery including FROGs (Exhibit A, Declaration of Panto (“Panto Decl.”) and RFPD (Exhibit A, Panto Decl. ¶ 3), set one on Plaintiff’s then attorney Dayna Ellsworth via electronic mail service on that same day. Defense counsel met-and-conferred with Plaintiff’s counsel on December 13, 18, and 19, 2024 regarding a thirty day extension on discovery and then Plaintiff’s counsel noted an intention to withdraw as the attorney of record. On June 9, 2025, the plaintiff’s counsel filed a motion to withdraw that was granted by the Honorable Judge Deen on June 20, 2025. (Exhibit B, Panto Decl. ¶ 3-4). On August 8, 2025, Defense counsel sent a meet-and-confer letter to Plaintiff Hayter stating that no responses to discovery were received and provided a two week extension. (Exhibit C, Panto Decl. 5). The defendant did not receive responses. Defendant filed the motion to compel responses to FROGs and RFPD, set one and motion for sanctions on November 21, 2025. The motion was accompanied by a proof of service indicating mail service to Plaintiff Hayter. Both motions were set for hearing on July 30, 2026. On February 13, 2026, Defendants Amended Notice of Motion to Compel. However, per ex parte papers filed by the plaintiff seeking a continuance, the Honorable Mark Flannagan continued both motions to September 8, 2026 at 9:00 a.m. On July 29, 2026, Defendants filed a notice of non-opposition to the motions to compel. The motion remains unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026 based on the first motion setting and due on August 25, 2026 based on the continuance. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: Defendant Nguyen’s notice of motion to compel FROGS, set one and memorandum of points and authorities in support of motion to compel FROGs; Declaration of Arcolina Panto and attached Exhibits A-C (totaling 28 pages); Defendant Nguyen’s notice of motion to compel RFPD, set one and memorandum of points and authorities in support of motion to compel RFPD; Declaration of Arcolina Panto and attached Exhibits A-C (totaling 22 pages); Amended notice for motion to compel FROGs (totaling 4 pages);

Amended notice for motion to compel RFP (totaling 4 pages); notice of non-opposition (totaling 3 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence”). (*Id.* at 172; *see also*, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co.*, *supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

Code of Civil Procedure section 2031.010(d) allows a party to “demand that any other party allow the party making the demand, or someone acting on the demanding party’s behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it.” Such a demand may be “without leave of court at any time that is 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first.” (Code Civ. Proc., § 2031.020(b)). “The party making a demand for inspection, copying, testing, or sampling shall serve a copy of the demand on the party to whom it is directed and on all other parties who have appeared in the action.” (Code Civ. Proc., § 2031.040). If no response is served, the party making the demand may move for an order compelling response to the demand. (Code Civ. Proc., § 2031.300(b)).

III. ANALYSIS

Here, the defendants served the plaintiff with FROG and RFPD on December 3, 2024, Defendant asserts to have served initial discovery including FROGs and RFPD (Exhibit A, Panto Decl. ¶ 3). The initial discovery was served on Plaintiff’s then attorney of record, Dayna Ellsworth via electronic mail service on that same day. (Motion, p. 2). Attorneys for the parties met-and-conferred after the discovery was served and Plaintiff’s counsel sought a thirty day extension and notified the defense that counsel would seek a motion to withdraw. (*Id.*). On June 9, 2025, the

plaintiff's counsel filed a motion to withdraw that was granted by the Honorable Judge Deen on June 20, 2025. (Exhibit B, Panto Decl. ¶ 3-4).

After the withdrawal of plaintiff's counsel, defense counsel sent a meet-and-confer letter regarding the outstanding FROGS and RFPD, set one to Plaintiff Hayter directly on August 8, 2025, and unilaterally offered a two week extension. (Exhibit C, Panto Decl. ¶ 5). The defendant did not receive responses and filed these motions to compel responses to FROGS and RFPD, set one and motion for sanctions on November 21, 2025 that was initially set for hearing on July 30, 2026. Essentially over nineteen months have passed since initial discovery was served.

As of July 29, 2026, the motion was unopposed. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

However, per ex parte application on June 30, 2026, Plaintiff sought a continuance, which the Honorable Mark Flannagan reviewed and granted. Judge Flannagan continued both motions to September 8, 2026 at 9:00 a.m.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, "the court ***shall*** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c)(emphasis added)).

The Defendants seek a total of \$410.00¹ in each of the motions to compel based on one hour of preparing and filing of the motion to compel FROG and another for the motion to compel RFPD, and anticipated 1 hour for each of the motions in review of opposition and to file reply briefs. The hourly rate requested is \$175.00. (Panto Decl. ¶ 7). The Defendant seeks \$60 for each of the two motions for filing fees. (*Id.*).

The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. The Court will award the requested one hour for preparation and filing of each motion at the hourly rate of \$175.00 as well as the \$60.00 in costs for filing each of the two motions. Thus, the sanctions is awarded in the total amount of \$470.00 (one hour of time for the motion to compel FROGS and one hour of time for the motion to compel RFPD at the hourly rate of \$175.00 and \$60.00 in cost for the motion to compel FROGS and \$60.00 in cost for the motion to compel RFPD).

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel discovery for FROGS and RFPD, set one. Plaintiff is ORDERED to provide verified code-compliant responses within twenty (20) days of this Order.

The Court GRANTS the motion for sanctions in the amount of \$470.00. Plaintiff is to pay the defendant this amount within twenty (20) days of this Order. The Court will prepare the formal Order.

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¹ In Defendant's motion to compel FROGS, set one. Defense counsel seeks \$585.00 in sanctions on p. 2 of the motion, but seeks \$410.00 in sanctions on p. 6 and 8. Based on the hourly rate and hours provided, the Court will consider the \$410.00 the correct amount sought by the defendant.

Calendar Line # 5
Case Name Ian Anderson vs Wells Fargo Bank
Case No. 24CV448600
Petition to Compel Arbitration I. <u>BACKGROUND</u> Plaintiff Ian Anderson (“Plaintiff”) brings this action for unlawful debt collection practices against Defendant Wells Fargo, Bank, N.A. Plaintiff alleges Defendant began a campaign of phone calls to collect payments due on his account by repeatedly calling him daily and multiple times a day. (Complaint at ¶ 8). “Plaintiff estimates that he received over one hundred phone calls from Defendant in an attempt to collect on the Debt.” (<i>Ibid.</i>). Plaintiff alleges two causes of action for (1) violation of the California Rosenthal Fair Debt Collection Practice Act (“Rosenthal Act”); and (2) invasion of privacy; intrusion into private affairs. Defendant now moves to arbitrate these claims based on the Arbitration Agreement contained in the Consumer Credit Card Customer Agreement (“the Agreement”). Having reviewed the Agreement, the Court will grant the motion and stay this action. II. <u>LEGAL STANDARD</u> Defendant maintains the Federal Arbitration Act (“FAA”) governs the Agreement. The Agreement provides: “You and the Bank (the ‘Parties’) agree that in this relationship: (1) The Parties are participating in transactions involving interstate commerce; and (2) This Arbitration Agreement and any resulting arbitration are governed by the provisions of the Federal Arbitration Act (Title 9 of the United States Code).” (Declaration of Melissa N. Mickael [“Mickael Decl.”], Ex. C at p. 18). Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (<i>Chiron Corp. v. Ortho Diagnostic Systems, Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (<i>Davis v. Nordstrom, Inc.</i> (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also <i>Ingle v. Circuit City Stores, Inc.</i> (9th Cir. 2003) 328 F.3d 1165, 1170). III. <u>ANALYSIS</u> A. THERE IS A VALID AGREEMENT TO ARBITRATE A valid agreement to arbitrate exists between the parties. “[T]he moving party bears the burden of producing ‘prima facie evidence of an agreement to arbitrate the controversy.’ The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165-166 [internal citations and quotations omitted]). Here, Defendant has attached a copy of the Agreement to its motion. (Mickael Decl., Exs. A-C.) The Agreement provides: “By either signing, using or accepting the plastic card(s) issued to you by us (your ‘Card[s]’), you accept the terms and conditions of this Agreement.” (<i>Id.</i>, Ex. A at § 2). The Agreement was updated over the years. (<i>Id.</i> at ¶ 9). Each time the Agreement was updated, a copy was provided to Plaintiff. (<i>Ibid.</i>). Plaintiff does not dispute that he continued to use the credit card account through June 29, 2023. (Mickael Decl. at ¶ 11). An updated Agreement was sent to Plaintiff as recent as August 2024 and remains in effect today. (<i>Id.</i> at ¶ 12). Each version of the Agreement contains a similar if not identical arbitration clause. (<i>Id.</i>, Exs. A-C). Thus, Plaintiff’s use of the card as dictated by section 2 of the Agreement demonstrates assent to be bound by the Agreement, including its arbitration provision. Therefore, a valid agreement to arbitrate exists between the parties.

B. THE SCOPE OF THE AGREEMENT COVERS PLAINTIFF'S CLAIMS

The scope of the Agreement covers Plaintiff's claims. The Agreement provides:

a. You and Wells Fargo Bank, N.A. (the "Bank") agree that if a Dispute arises between you and the Bank, upon demand by either you or the Bank, the Dispute shall be resolved by the following arbitration process. The foregoing notwithstanding, the Bank shall not initiate an arbitration to collect a consumer debt, but reserves the right to arbitrate all other disputes with its consumer customers. A "Dispute" is any unresolved disagreement between you and the Bank. It includes any disagreement relating in any way to the Card or related services, Accounts, or matters; to your use of any of the Bank's banking locations or facilities; or to any means you may use to access the bank. It includes claims based on broken promises or contracts, torts, or other wrongful actions. It also includes statutory, common law, and equitable claims. A Dispute also includes any disagreements about the meaning or application of this Arbitration Agreement. This Arbitration Agreement shall survive the payment or closure of your Account. **YOU UNDERSTAND AND AGREE THAT YOU AND THE BANK ARE WAIVING THE RIGHT TO A JURY TRIAL OR TRIAL BEFORE A JUDGE IN A PUBLIC COURT.** As the sole exception to this Arbitration Agreement, you and the Bank retain the right to pursue in small claims court any Dispute that is within the court's jurisdiction. If either you or the Bank fails to submit to binding arbitration following lawful demand, the party so failing bears all costs and expenses incurred by the other in compelling arbitration.

(Mickael Decl., Ex. C at p. 17).

Defendant argues that a delegation clause exists because the Agreement requires the arbitration of disagreements concerning the meaning or application of the Agreement itself. The question of whether the parties agreed to arbitrate a particular dispute is generally to be decided by the court. (*AT & T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 649). The parties may, however, agree to submit the arbitrability question itself to arbitration. (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 943). Courts should find that the parties agreed to arbitrate arbitrability only where there is clear and unmistakable evidence that they did so, resolving any ambiguity in favor of a finding that the issue is for the court to determine. (*Id.* at pp. 944-45). Here, it is clear that disputes concerning the applicability of the Agreement shall be heard by the arbitrator. In any event, Plaintiff brings a statutory claim for violation of the Rosenthal Act and a common law claim for invasion of privacy. These claims are unresolved disagreements concerning the use of the card. They, therefore, fall within the scope of the Agreement.

C. WAIVER MUST BE DECIDED BY THE ARBITRATOR

Plaintiff argues Defendant has waived its right to arbitrate by filing this motion one year and three months after the complaint was filed. Plaintiff argues that Defendant checked the box for trial by jury in its case management statement rather than opting for arbitration. The Court recognizes this to be a mere oversight as explained by Defendant. The completion of mandatory forms does not implicate litigation conduct on the part of Defendant. In any event and as noted above, disagreements about the meaning or application of the Agreement are to be resolved by the arbitrator. Issues such as waiver concern the application of the Agreement. Therefore, the issue of waiver has been delegated to the arbitrator and not the Court.

Furthermore, "under California law the court determines waiver, while under federal law the arbitrator must decide whether the delay in demanding arbitration was unreasonable and prejudicial, and where the delay is unrelated to

the litigation process, ‘it is improper for the judge to decide the issue.’” (*Desert Regional Medical Center, Inc. v. Miller* (2022) 87 Cal.App.5th 295, 314 [citing *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 963]).

Here, the Court has determined that the FAA governs the Agreement; therefore, federal law applies. Moreover, Plaintiff’s waiver argument is not reasonably based on any litigation conduct undertaken by Defendant. No discovery has taken place between the parties and Defendant has not filed any substantive motions apart from this one. To reiterate, the question of waiver is reserved for the arbitrator and not the court.

Accordingly, the Court GRANTS the motion to compel arbitration. This action is STAYED in its entirety pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3).

IV. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel arbitration. This action is STAYED in its entirety pending the outcome of arbitration.

The Court will prepare the formal order

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Calendar Line # 6
Case Name Quynh Tran vs City of San Jose
Case No. 24CV449214
Motion for Summary Judgment/Adjudication Before the court is defendant City of San Jose’s motion for summary judgment, or in the alternative, summary adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Plaintiff Quynh Tran (“Tran”) alleges that, on October 20, 2023, defendant City of San Jose (“City”) negligently maintained the sidewalk adjacent to westbound Yerba Buena Road between Nieman Boulevard and Byington Drive. (Complaint, ¶¶Prem.L-1). This condition caused plaintiff Tran to trip and fall and sustain injury. (<i>Id.</i>). On October 10, 2024, plaintiff Tran filed a Judicial Council form complaint asserting a cause of action for premises liability—dangerous condition of public property. On December 11, 2024, defendant City filed its answer to plaintiff Tran’s complaint. On March 23, 2026, defendant City filed the motion now before the court, a motion for summary judgment/adjudication of plaintiff Tran’s complaint. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, subd. (a)(1): “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., §437c, subd. (a)(1)). “A defendant or cross-defendant has met that party’s burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., §437c, subd. (p)(2)). “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., §437c, subd. (c)). <u>III. ANALYSIS</u> A. DANGEROUS CONDITION OF PUBLIC PROPERTY “A public entity is liable for injury proximately caused by a dangerous condition of its property if the dangerous condition created a reasonably foreseeable risk of the kind of injury sustained, and the public entity had actual or constructive notice of the condition a sufficient time before the injury to have taken preventive measures.” (<i>Cornette v. Dept. of Transportation</i> (2001) 26 Cal.4th 63, 66 citing Gov. Code, §835, subd. (b)). Government Code section 835 provides the basis for liability in an action against a public entity for an injury caused by the dangerous condition of public property. To establish liability under Government Code section 835, the following essential elements must be proved: (1) The public property was in a <i>dangerous condition</i> at the time of the injury; (2) The injury to the plaintiff was proximately caused by the dangerous condition; (3) The kind of injury that occurred was reasonably foreseeable as a consequence of the dangerous condition; and (4) Either:

- (a) The dangerous condition was created by a public employee's negligent or wrongful act or omission within the scope of his or her employment, or
- (b) The entity had actual or constructive notice of the condition a sufficient time before the injury occurred to have taken reasonable measures to protect against the injury.

(Gov. Code, §835; emphasis added; see also 2 VanAlstyne, California Government Tort Liability Practice (4th ed. 2006) §12.5, pp. 795 – 796; see also CACI, No. 1100).

B. DANGEROUS CONDITION

In seeking summary judgment, defendant City contends, among other things, the subject sidewalk was not in a dangerous condition at the time of the incident. Government Code section 830, subdivision (a) defines the term “dangerous condition” to mean “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” “In general, ‘whether a given set of facts and circumstances creates a dangerous condition is usually a question of fact and may only be resolved as a question of law if reasonable minds can come to but one conclusion.’” (*Peterson v. San Francisco Community College District* (1984) 36 Cal.3d 799, 810). “[A]lthough the question of whether a dangerous condition exists is often one of fact, the issue may be resolved as a question of law when reasonable minds can only draw one conclusion from the facts.” (*Dina v. People ex rel. Dept. of Transportation* (2007) 151 Cal.App.4th 1029, 1054; see also *Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1347).

Government Code section 830.2 permits the court to decide the existence of a “dangerous condition” as a matter of law. That section states, “A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, *trivial* or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used.” (Emphasis added. See also CACI, No. 1102).

Defendant City moves for summary judgment by relying upon the “trivial defect” defense.² This defense is explained in *Ursino v. Big Boy Restaurants of America* (1987) 192 Cal.App.3d 394, 398 (*Ursino*), where the court concluded, “persons who maintain walkways, whether public or private, are not required to maintain them in an absolutely perfect condition. The duty of care imposed on a property owner, even one with actual notice, does not require the repair of minor defects.” In *Ursino*, a 72-year old woman tripped on a raised edge of a section of defendant’s sidewalk and fell. The parties stipulated to a number of facts, one of which was that “the edge of the cement section in question was raised no higher than three-fourths of an inch.” (*Ursino, supra*, 192 Cal.App.3d at p. 396). The trial court granted summary judgment in defendant’s favor on the basis that the affirmative defense of “trivial defect” applied as a matter of law. The appellate court affirmed. The *Ursino* court explained what a trial court should consider in determining whether the defect is, in fact, “trivial.”

When a court determines whether a given defect is trivial, as a matter of law, the court should not rely merely upon the size of the depression. While size may be one of the most relevant factors to the decision, it is not always the sole criterion. Instead, the court should determine whether there existed any circumstances surrounding the accident which might have rendered the defect more dangerous than its mere abstract depth would indicate. (*Id.* at p. 397; punctuation omitted).

² In *Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927, the court explained, “Courts have referred to this simple principle as the ‘trivial defect defense,’ although it is not an affirmative defense but rather an aspect of duty that plaintiff must plead and prove.” In either case, it is defendant City’s initial burden of either negating the element of duty or establishing the trivial defect defense.

Some of those other circumstances would include, “lighting, debris, or a history of other similar injuries.” (*Id.*).

Aside from the size of the defect, the court should consider whether the walkway had any broken pieces or jagged edges and other conditions of the walkway surrounding the defect, such as whether there was debris, grease or water concealing the defect, as well as whether the accident occurred at night in an unlighted area or some other condition obstructed a pedestrian’s view of the defect. (*Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927).

The legal analysis involves several steps. First, the court reviews evidence regarding the type and size of the defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors such as the weather, lighting and visibility conditions at the time of the accident, the existence of debris or obstructions, and plaintiff’s knowledge of the area. If these additional factors do not indicate the defect was sufficiently dangerous *to a reasonably careful person*, the court should deem the defect trivial as a matter of law and grant judgment for the landowner. [Citation]. (*Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 567–568; emphasis added).

In moving for summary judgment, defendant City proffers the following facts: On October 20, 2023 at approximately 10:30 p.m., Plaintiff was walking on Yerba Buena Road between Nieman Boulevard and Byington Drive in the City of San Jose, when he tripped and fell.³ Plaintiff began his trip at 2767 Deer Isle Drive and was planning on turning around when he reached Nieman Boulevard to head back toward his house.⁴ The walk from Plaintiff’s house to Nieman Boulevard is uphill, and the walk back is downhill.⁵ Plaintiff described the area of Yerba Buena Road where the fall occurred as “dark” with no streetlights.⁶ Plaintiff stated that he could somewhat see the sidewalk because of the color differences between the pavement, but that he could not see any details, and he was not able to see the uplift that tripped him before he fell.⁷ Plaintiff also stated that it was “mostly dark” along the other parts of Yerba Buena Road that were on his route.⁸ Plaintiff did not use the flashlight feature on his phone to light his path.⁹

Plaintiff estimated that he had walked along this route once or twice a year over the last 20 years that he had lived in his home.¹⁰ During all those other walks, Plaintiff never had any issue or notice any uneven surface on the sidewalk.¹¹

During this particular night, Plaintiff stated he was on his way home from Nieman Boulevard walking back on the downslope when his right toe “caught on the uneven surface, the rise of one of the sidewalks,” and he tripped over it.¹² The piece of concrete where Plaintiff allegedly fell was approximately 1.75 inches tall.¹³

From these facts, defendant City invites the court to reach the conclusion, as a matter of law, that the condition was not dangerous. However, the court is presented with competing evidence of factors weighing in favor of (accident occurring at night in unlit area) and against (1.75” height differential) a finding that the defect at issue was sufficiently dangerous to a reasonably careful person. Under these circumstances, the court declines to reach a conclusion that

³ See Defendant City of San Jose’s Separate Statement in Support of Motion for Summary Judgment, or in the Alternative, Summary Adjudication (“City UMF”), Fact No. 1.

⁴ See City UMF, Fact No. 2.

⁵ See City UMF, Fact No. 3.

⁶ See City UMF, Fact No. 5.

⁷ See City UMF, Fact No. 6.

⁸ See City UMF, Fact No. 8.

⁹ See City UMF, Fact No. 9.

¹⁰ See City UMF, Fact No. 11.

¹¹ See City UMF, Fact No. 12.

¹² See City UMF, Fact No. 13.

¹³ See City UMF, Fact No. 16.

the alleged defect is trivial as a matter of law. (See *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 120, 123—“a condition's dangerousness can be established even when the plaintiff did not use due care when encountering it;” “reasonable minds could still differ as to its dangerousness based on the evidence of [aggravating factors];” “we disregard plaintiff’s familiarity with the area and the specific sidewalk condition in our triviality analysis.”).

C. ACTUAL/ CONSTRUCTIVE NOTICE

Defendant City argues additionally that summary judgment should be granted because defendant City had neither actual nor constructive notice of the allegedly dangerous condition. As noted earlier, Government Code section 835 requires a showing of either:

- (a) The dangerous condition was created by a public employee’s negligent or wrongful act or omission within the scope of his or her employment, or
- (b) The entity had actual or constructive notice of the condition a sufficient time before the injury occurred to have taken reasonable measures to protect against the injury. (Gov. Code, §835).

A showing that defendant City had actual/ constructive notice is but one of two alternatives in establishing a claim for dangerous condition of public property. The other alternative is to show that the dangerous condition was created by a public employee’s negligent or wrongful act or omission within the scope of employment. Since these alternatives are stated in the disjunctive, defendant City must demonstrate Plaintiff cannot establish either in order to meet its initial burden on summary adjudication. (See Code Civ. Proc., §437c, subd. (p)(2)—“A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.”).

While defendant City’s focus is on actual/ constructive notice, defendant City acknowledges its burden by stating, “To begin with, there is no evidence that the City negligently or wrongfully created the sidewalk uplift. (UMF #19 – 22).” (See page 7, lines 15 – 16, of Defendant City of San Jose’s Memorandum of Points and Authorities ISO Motion for Summary Judgment, or in the Alternative, Summary Adjudication). However, in this court’s opinion, the evidence cited by defendant City does not support its assertion. The four facts cited by defendant City are: The City is a public entity that relies upon a complaint-based sidewalk inspection system, where sidewalks are fixed after receipt of a complaint from a citizen or from a City employee out conducting City business; This is because there are over 3100 miles of sidewalk in the City, which makes it cost-prohibitive and impossible for City employees to actively inspect all sidewalks in the City, absent the receipt of a complaint; The City had zero complaints relating to the subject area before Plaintiff’s fall; and Plaintiff’s government claim is the first time the City became aware of a potential sidewalk issue in the subject area.

The facts cited by defendant City simply do not address whether defendant City negligently or wrongfully created the sidewalk uplift. As such, defendant City has not met its initial burden of showing that one or more elements of the cause of action, even if not separately pleaded, cannot be established. Irrespective of whether defendant City had actual or constructive notice of the allegedly dangerous condition, defendant City has not shown that the alternative (i.e., dangerous condition was created by a public employee’s negligent or wrongful act or omission within the scope of his or her employment) cannot be established.

IV. CONCLUSION

Based on the foregoing, defendant City’s motion for summary judgment is DENIED.

The Court will prepare the formal Order.

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Calendar Line # 7
Case Name Danielle Stanton vs Mehus Construction, Inc.
Case No. 24CV452024
Motion to Compel Further Response to Request for Production; Sanctions <u>I. BACKGROUND</u> This case stems from a construction defect allegation that Plaintiff Danielle Stanton asserted after hiring Defendant Mehus Construction Inc. (“Mehus”) to construct a new custom single family residence and garage in Los Gatos, California. On November 18, 2024, Plaintiff Stanton filed a Complaint alleging three causes of actions: (1) negligence against all Defendants; (2) breach of contract against Defendant Mehus; (3) and breach of warranty against Defendant Mehus. Defendants filed Answers, Cross-Complaints, and First Amended Cross-Complaint in this matter. Before the Court, is Defendant/Cross-Complainant Mehus’s motion to compel further responses for request for production of documents (“RFPD”), Nos. 42-52, set three and sanctions. The motion was filed on July 31, 2026 and accompanied by a proof of service indicating electronic service on plaintiff’s counsel and counsel for cross-defendants/cross complainants on that same day. Plaintiff opposes the motion to compel and filed timely opposition briefs on August 25, 2026. Defendant Mehus filed a reply brief on August 31, 2026. The Court has carefully reviewed the following: Defendant Mehus’s notice of motion to compel, memorandum of points and authorities (“MPA”); Declaration of Kiran S. Idrees and attached Exhibits A-F (totaling X pages); Mehus’s separate statement in support of the motion (totaling 31 pages); Plaintiff’s Opposition (totaling 21 pages); Declaration of Missy M. Cornejo and attached Exhibits 1-5 in support of Plaintiff’s Opposition (totaling 39 pages); Mehus’s Reply brief (totaling 14 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2017.010: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (<i>City of Los Angeles v. Superior Court</i> (2017) 9 Cal.App.5th 272, 288). Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (<i>Costco Wholesale Corp. v. Superior Court</i> (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of

blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (*Juarez v. Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 389).

A. PROCEDURAL REQUIREMENTS

(1) Timeliness

Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1)). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

(3) Separate Statement

California Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

B. MOTION TO COMPEL FURTHER RESPONSES TO RFPD

Pursuant to Code of Civil Procedure section 2031.260, a party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd.(a)). If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling response to the demand. (*Id.*, § 2031.300, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (*See Id.*, § 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2031.300, subd. (a)).

Code of Civil Procedure section 2031.310(b)(1) sets forth that a motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1)). In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined “good cause” as a showing that there “a disputed fact that is of

consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct.* (2002) 95 Cal. App.4th 92, 98). “In addition to the demands for inspection, copying, testing, or sampling permitted by this chapter, a party may propound a supplemental demand to inspect, copy, test, or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody, or control of the party on whom the demand is made.” (Code Civ. Proc., § 2031.050, subd. (a)).

Code of Civil Procedure section 2031.280, subdivision (a) provides that: “Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.” (Code of Civ. Proc., §2031.280(a); *Pollock v. Superior Court (Schuster)* (2023) 93 Cal.App.5th 1358-1352 ([“Section 2031.280 prescribes the form in which items must be produced. As newly amended, it requires that a document be identified with the specific request number to which it pertains . . .”])).

III. ANALYSIS

Defendant/Cross-Complainant Mehus’s motion to compel further responses for request for production of documents (“RFPD”), Nos. 42-52, set three and sanctions.

As an initial matter, the Court analyses the procedural requirements. First, Defendant Mehus asserts that the motion as timely as its RFPD, set three were served on June 10, 2026, and the Plaintiff served verified responses on July 13, 2026. (Declaration of Idrees (“Idrees Decl.”), ¶¶ 8-11; Exhibit C and I). Defendant filed the notice of motion to compel further responses was served within 45 days following receipt of verified response in compliance with Code of Civil Procedure section 2031.310. Second, Defendant Mehus’s counsel submitted a meet and confer declaration in support of the motion stating that reasonable and good faith efforts were made to resolve the matter informally in compliance with Code of Civil Procedure section 2016.040 and 2030.300(b)(1) for several months and again on July 16, 2026. (Idrees Decl., ¶¶ 12-15; Exhibit F). The Court notes that Plaintiff disputes that Defendant failed to expressly raise defense’s failure to cite 2031.310 as the basis of the motion, but correspondence between the party demonstrates an issue regarding organizational responses. Finally, the defendant filed a separate statement in accordance with California Rules of Court, rule 3.1345. The Court notes the Plaintiff opposes the responses defense provided to some of the separate statements. The Court finds that the procedural requirements have been satisfied and will consider the merits of the motion.

Defendant Mehus propounded RFPD, set three on Plaintiff on June 10, 2026. (Idrees Decl., ¶8; Exh. C). Plaintiff served verified responses on July 13, 2026. (*Id.*, at ¶ 11). What remains at issue is RFPD, Nos. 42-52. Defendant Mehus argues that the discovery was narrowly tailored to the documents support Plaintiff’s construction defect allegations, breach of contract claim, and damages. (*Id.*, at ¶ 8). Defense asserts that Plaintiff produced approximately 2,066 pages of documents, but could not identify documents supporting Plaintiff’s allegations in the Complaint. (*Id.*, at ¶ 10).

In opposition, Plaintiff asserts that on July 13, 2026, Plaintiff served verified code-compliant responses to Defendant Mehus’s RFPD, set three. (Cornejo Declaration (“Decl. Cornejo”), ¶ 3; Exhibit 3). Plaintiff avers that the responses were unambiguously numbered 1 through 11 tracked demands for response no. 1 quotes demand no. 42; and response no. 11 quotes demand no. 52, and defendant never claimed confusion prior to filing its motion. (Opposition, p. 3). As to Nos. 50 and 51, Plaintiff objected on vagueness, ambiguity, overbreadth, relevance, expert discovery, and attorney-client privilege or work-product doctrine. (Decl. Cornejo, ¶ 4). Plaintiff also asserts that defense failed to meet and confer about the underlying issue in this motion, which is the organization requirements under section 2031.280(a). (Opposition, p. 3). Rather, defense raised substantive objections, which the Plaintiff

responded to regarding the request to identify and produce, rather than organize responses. (*Id.*, at p. 4). Plaintiff seeks to have the motion denied based on defense's failure to specifically meet and confer about section 2031.280(a) requirements. (*Id.*; Cornejo Dec., ¶ 10-11). Plaintiff also asserts that Defendant's separate statement does not comply with Rules of Court, rule 3.1345 as it misstates responses, including that No. 52, representing Plaintiff filed "no response," which Plaintiff denies. (Opposition, at p. 6-9; Cornejo Dec., ¶ 12). Next, Plaintiff challenges defense's representation of the *Pollack* case and asserts that the court does not require a party to prepare Bates number cross-reference table to responses for RFPD. (*Id.*, at p. 10-11). Plaintiff also asserts that defense attempts to improperly obtain contention discovery, which must be obtained through interrogatories. (*Id.*, at p. 11-12). Plaintiff asserts that Plaintiff improperly seeks documents that have already been produced, including No. 42 – the June 1, 28, 2018 contact, which Plaintiff proceed in response to RFPD, No.7, set one and asserts duplicative discovery is barred. Further, Plaintiff challenges Nos 50-51 as work product. (*Id.*, p. 12-13). Finally, Plaintiff asserts that defense admits that portions of the motion are moot based on its July 16, 2026 letter, regarding Nos. 42, 43, and 48. (*Id.*, p. 17).

In its reply brief, Defendant Mehus argues that Plaintiff concedes that section 2031.280(a) requires a party to identifying documents by request numbers in response to RFPD. Defense argues that simply Bates labeling without identification to the request as to which document responds does not satisfy Plaintiff's requirements under section 2031.280(a) and the standard set forth in *Pollack v. Superior Court (Schuster)*, *supra*, 93 Cal.App.5th 1348. (Reply, p. 3-4). Defense argues that Plaintiff cannot evade the organizational requirement set forth in section 2031.280(a) by simply providing that the documents have been or would be produced under section 2031.310(a). (*Id.*). Defense argues that *Pollack* does not require bates stamping, but requires that documents produced in responses to a RFPD identify the specific request to which it applies. (*Pollack v. Superior Court (Schuster)*, *supra*, 93 Cal.App.5th at 1359). Defense also argues that any substantive objections Plaintiff lodges does not excuse noncompliance with section 2031.280(a). (Reply, p. 6). Defense asserts it is not seeking further substantive responses identifying facts, witnesses, or writing which Plaintiff basis its legal contention, or identification of which documents that Plaintiff finds persuasive, or seeking cumulative or duplicative requests, but simply demanding that Plaintiff identify which documents were produced in response to RFPD, Nos. 42-52, set three. (*Id.*, p. 6-7).

The Court finds the July 16, 2026 meet and confer communication regarding the RFPD, set three relevant, specially, on page 4, defense states:

"In addition, Plaintiff's document production was produced without Bates numbering. We appreciate that locating documents within a production of that size can be challenging. To the extent Plaintiff's review of the foregoing request or this correspondence causes counsel to identify additional responsive documents that were inadvertently omitted or previously overlooked, Defendant welcomes a supplemental production. Defendant's objective is simply to ensure that the parties are proceeding with a completed production before judicial intervention becomes necessary." (Exhibit 1 to Decl. Cornejo).

The Court notes that, Plaintiff's counsel responded on that same day and responded, on page 2, "Your letter states that Plaintiff's production as made "without Bates numbering." That is incorrect. All documents produced by Plaintiff via Dropbox, both in her prior productions and in this production accompanying her responses to the Third Set, were Bates-labeled. The premise that Plaintiff produced documents without Bates numbers is simply mistaken." (Exhibit 2 to Decl. Cornejo).

The Court finds that while the meet and confer letter does not directly state section 2031.280, it does identify the organizational issues as to the responses. The outstanding issue is compliance with section 2031.280 and not the substance. "Section 2031.280 prescribes the form in which items must be produced. As recently amended, it requires that a document "be identified with the specific request number to which the documents respond." (*Id.* at

subd. (a)). This replaces the prior requirement that documents “either be produced as they are kept in the usual course of business, or be organized and labeled to correspond with the categories in the demand.” (Former § 2031.280, subd. (a)). There is no requirement that a response identify a document with the specific request to which the document applies. There is no requirement that a document production be verified, nor that documents be Bates labeled.” *Pollack v. Superior Court (Schuster)*, *supra*, 93 Cal.App.5th at 1352. Thus, the Court does grant the motion to compel RFPD, Nos. 42-52 to be compliant with section 2031.280.

IV. SANCTIONS

Code of Civil Procedure section 2031.310, subdivision (h), provides, in pertinent part, that “the court **shall** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, **unless** it finds that the one subject to the sanction acted with **substantial justification** or that other circumstances make the imposition of the sanction **unjust**.” (emphasis added).

Here, both sides seek sanctions against each other.

Defendant Mehus seeks a total of \$3,960.00 in sanctions for pursuing this motion. Defense counsel seeks \$60.00 in costs for filing this motion. (*Id.*, at ¶ 17). Mehus’s counsel seeks a total of 15.6 hours tune at an hourly rate of \$250.00 which is comprised of the following: 8.8 hours for preparation and motion; 2.8 hours of preparation of separate statement; 1.0 hours of anticipated review of Defendant’s Opposition, 1.0 hours of anticipated preparation of a reply; and 2.0 hours of anticipated round-trip travel time for the hearing. (Idrees Decl., ¶¶ 18-20). Defense argues that Plaintiff cannot demonstrate substantial justification in opposing the motion and emphasizes that defense counsel over several months repeatedly identified the same organizational deficiency over three rounds of discovery. (Idrees Decl., ¶ 14-15; Defendant’s MPA, p. 16). Defense counsel emphasizes its repeated attempts to meet and confer with Plaintiff’s counsel. (Idrees Decl., ¶ 3-15; Exhibits A-I). Despite these efforts, Plaintiff’s counsel refused to provide bates-number cross references, index, or organizational guide to the 2,066 pages documents it produced and refused to take any remedial steps. (Defendant’s MPA, p.16-17; *see also*, *Pollack v. Superior Court (Schuster)*, *supra*, 93 Cal.App.5th 1348).

Plaintiff seeks a denial of the motion and defense’s request for sanctions, and seeks \$4,290.00 in sanctions for filing an opposition. (Opposition, p. 13-14). Plaintiff’s counsel asserts that substantial justification exists for opposing the motion based on defense’s misrepresentation of material facts in the separate statement and motion as well as failure to meet and confer about section 2031.280. (*Id.*). Plaintiff emphasizes that there is a discrepancy between the defense’s request for \$4,600.00 in its notice of motion and \$3,960.00 in the Declaration of Idree. (*Id.*, p. 14). Plaintiff’s counsel seeks attorney’s fees for 6.6 hours, which is comprised of 0.9 hours reviewing defense’s moving papers, 4.2 hours researching and filing an opposition, and 1.5 hours for anticipated costs of reviewing the reply brief and attending the hearing, at the hourly rate of \$650.00. (Cornejo Dec., ¶ ¶13-14).

In its reply, defense acknowledges the discrepancy, and seeks sanctions in the amount of \$3,960.00. (Reply, p. 11). Defense seeks that Plaintiff’s response is denied on the grounds that Plaintiff cannot establish substantial justification and that notice was proper. (*Id.*, p. 10).

Misuse of discovery includes, failure to comply with specified procedures and unsuccessfully opposing amotion to compel without substantial justification. To avoid sanctions, an unsuccessful opponent to the motion to compel may show “substantial justification” or the rational basis to conclude that the party’s failure to fulfill its discovery obligations were justified in law and fact. (*Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434; *Foothill Properties v. Lyon/Copley Corona Assocs.* (1996) 46 Cal.App.4th 1542, 1557).

Here, the Court notes that parties have engaged in at least three rounds of written discovery in a construction defect case and attempted to work out issues via correspondence. The voluminous records in this case are referenced by both sides and both sides in its correspondence discuss the need to avoid oversight on duplicate production. There are references to disagreements on organizational form requirements under section 2031.280, but plaintiff's challenge that it was raised specifically for the first time. In weighting these factors, the Court exercise its discretion in finding that there was not a misuse of discovery on the grounds that Plaintiff acted with substantial justification to oppose a discovery dispute. Although Plaintiff's Dropbox response exceeding 2,000 pages of discovery failed to comply with the requirements of section 2031.280 that documents be identified with the specific request which they apply, the mitigation is that Plaintiff's attempted some type of response to RFPD 42-52 and bates stamps and there was no specific response under section 2031.280 for Plaintiff to cure its response. Thus, the Court DENIES the request for sanctions by Defendant and Plaintiff.

V. CONCLUSION

Based on the foregoing, the motion to compel compliance with section 2031.280 to RFPD, Nos. 42-52, set three is GRANTED. Plaintiff is to produce 2031.280 compliant responses within twenty (20) days from this hearing.

The requests for sanctions by defendant and plaintiffs are DENIED.

The Court will prepare the formal Order.

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Calendar Line # 8
Case Name Juvenal Plancarte vs General Motors
Case No. 25CV467501
Motion to Compel Deposition Under Code of Civil Procedure Section 871.26; Sanctions <u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Juvenal Plancarte (“Plancarte”)’s December 20, 2022 purchase of 2022 Chevrolet Silverado 150 vehicle, vehicle identification number: 3GCNAAEK8NG679666 (“Subject Vehicle”) that was manufactured and or distributed by Defendant GM. (Complaint). On May 30, 2025, Plaintiff filed a Complaint alleging five causes of actions: (1) violation of Civil Code section 1793.2(D); (2) violation of Civil Code section 1793.2(B); (3) violation of Civil Code section 1793.2(A)(3); (4) breach of the implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; and (5) fraudulent inducement-concealment. (<i>Id.</i>). Defendant GM filed an Answer on February 23, 2026. Before the Court is Defendant GM’s motion to compel Plaintiff Plancarte’s deposition under Code of Civil Procedure section 871.26 and request for sanctions. Defendant filed the instant motion on January 30, 2026, and the motion was accompanied by a proof of service indicating electronic mail service on Plaintiff’s counsel on that same day. On August 13, 2026, Plaintiff filed an opposition brief. Defendant filed a reply brief on August 31, 2026. The Court has carefully reviewed the following: Defendant’s notice of motion, memorandum of points and authorities (“MPA”)(totaling 18 pages); Declaration of Kaitlyn Lasater and attached Exhibits A-D in support of the motion and sanctions (totaling 19 pages); Plaintiff’s opposition (totaling 6 pages); Declaration of Tyson Smith and attached Exhibits A-B in support of Plaintiff’s opposition (totaling 14 pages); Defendant’s Reply brief (totaling 6 pages); Declaration of Sanja Stark in support of the GM’s reply (totaling 4 pages) ; proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 871.26, subdivision (c): Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours of the following deponents: (1) The plaintiff. . . (Code of Civ. Proc., 871.26(c)(1)). The legislative intent behind Code of Civil Procedure section 871.26 was to streamline civil procedure associated with claims brought under the Song-Beverly Act by enforcing early exchange of discovery, including depositions within 120 days after filing of the answer or other responsive pleadings. (<i>Id.</i>; California Bill Analysis, A.B. 1755 Assem., 8/30/2024). <u>III. ANALYSIS</u> Defendant GM moves for an order compelling Plaintiff Plancarte to appear for a deposition and request for

monetary sanctions in the amount of \$1,500.00 against Plaintiff.

Defendant demonstrates that it filed a demurrer to the Plaintiff's Complaint, GM's responsive pleading on September 19, 2025, which started the initial discovery timeline set forth under Code of Civil Procedure section 871.26, including the right to take the deposition of the Plaintiff within 120 days of filing of its demurer. (Declaration of Lasater ¶ 3). Defense attempted to meet and confer about discovery starting on September 19, 2025 (*Id.*, 4; Exhibit A) and noticed the deposition of the Plaintiff for October 31, 2025. (*Id.*, 5; Exhibit B). On October 28, 2025, just three days before the scheduled deposition, Plaintiff's counsel objected to the Notice of Deposition on the grounds that it was unilaterally set and that Plaintiff and/or counsel were unavailable. (*Id.*, 6; Exhibit C). From January 12, 2026 to January 22, 2026, defense counsel attempted to meet and confer about rescheduling Plaintiff's Deposition, but did not receive a response from Plaintiff's counsel. (*Id.*, 7-8; Exhibit D). Defense asserts that the statutory deadline to conduct the deposition of the Plaintiff was January 16, 2026. (*Id.*, 9).

In opposition, Plaintiff's counsel asserts that the motion is moot because Plaintiff's deposition was taken on June 3, 2026. (Opposition, 3-4; Declaration of Smith, ¶ 5-7; Exhibit B). Plaintiff's counsel represents that on February 16, 2026, his office reached out to defense counsel and offered a video deposition for Plaintiff on June 3, 2026 at 11:00 a.m., which the defense accepted and served an Amended Notice of Deposition for that date. (Declaration of Smith, ¶ 4; Exhibit A). Plaintiff's counsel attests that because the deposition was completed and that the office acted in good faith, the motion is "no longer outstanding", and there is not failure to comply that would warrant a sanction against counsel. Plaintiff also objects to the motion to compel on the grounds that Plaintiff is not refusing to appear for deposition, but simply seeking a reasonably noticed deposition date. (Declaration of Smith ¶ 3). Plaintiff argues that Defendants' September 19, 2025, notice of deposition for Plaintiff on October 31, 2025, was unilaterally noticed and that Plaintiff and Plaintiff's counsel were unavailable on that date. (Opposition, p. 2-3).

In its reply brief, defense emphasizes that this motion is **not** moot and that Plaintiff's counsel misstates that the motion is moot as deposition was completed on June 3, 2026, citing that it was a different case, (Case No. 25CV467009) for a 2020 Chevrolet Silverado that is **not** related to this present case (Case No. 25CV467501) for the Subject Vehicle. (Reply, p. 1; Declaration of Stark, ¶ 7). Defense asserts that Plaintiff's counsel repeatedly failed to comply with their statutory requirements having objected to a properly noticed deposition and failing to respond to GM's repeated attempts to schedule Plaintiff's deposition. (*Id.*).

The Court finds this misstatement to be significant and finds that the motion remains at issue. Exhibit A attached to the Declaration of Smith includes an email correspondence that bears the subject line: "[EXTERNAL] RE: Plancarte, Juvenal v. GM | Case no. 25CV67009 | Setting Pltfs' Depo." The Court notes that while the name of the Plaintiff is correct, the case number does not match the case number in this present case, 25CV467501. Plaintiff's counsel has failed to show good cause for failing to produce the Plaintiff for deposition within 120 days after the defense filed a responsive pleading. (Code of Civ. Proc., § 871.26(c)(1)). The Court does not find Plaintiff's reasoning persuasive. For over four months Defendant has demonstrated its efforts to meet and confer about the deposition of the plaintiff. The Court GRANTS the motion to compel Plaintiff's deposition.

IV. SANCTIONS

Code of Civil Procedure section 871.26, subdivision (j), subsection (2) provides in relevant part:

Unless the party failing to comply with this section shows **good cause**, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court **shall** impose sanctions as follows:

- (2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(Code of Civ. Proc., 871.26(j)(2))(emphasis added).

Here, Defendant seeks a total of \$1,500.00 in sanctions under Code of Civil Procedure section 871.26(j)(2) against Plaintiff's counsel Strategic Legal Practices, APC. (Declaration of Lasater ¶ 11; Reply 1-2). Defense argues that Plaintiff's failure to comply with initial disclosures necessitates the imposition of sanctions and that Plaintiff fails to show good cause as to why sanctions should not be imposed. (Defense MPA, p. 14).

In opposition, Plaintiff asserts that Plaintiff has shown good cause and that sanctions are not warranted, "[b]ecause the Motion is moot and should be denied rather than granted, no sanction may issue." (Opposition, p. 4). Plaintiff emphasizes, "Here, there is no failure to comply. Plaintiff has not participated in the initial deposition that the statute requires, so the predicate for any sanction is absent." (*Id.*). Plaintiff argues that imposing sanctions would be unjust. (*Id.*). Finally, Plaintiff avers that Defendant has not suffered any prejudice as GM obtained the very discovery it seeks, the deposition of Plaintiff, which Plaintiff's counsel represents took place on June 3, 2026. (*Id.*, at p. 5).

In its Reply, as set forth above, defense argues that Plaintiff's counsel misstates that the deposition of the Plaintiff was taken on June 3, 2026, and confuses it with another matter (Case No. 25CV467009). (Reply, p. 1; Declaration of Stark, ¶ 7). Defense argues sanctions is merited as Plaintiff's counsel reputedly failed to comply with initial discovery under Code of Civil Procedure section 871.26, and emphasizes that the statutory deadline to conduct the deposition of the Plaintiff was on January 16, 2026. (Declaration of Lasater, ¶ 9). Despite defense's multiple attempts to schedule a deposition, Plaintiff has not provided a response. (*Id.*, ¶ 7-10). Without Plaintiff's deposition, defense asserts prejudice that it is unable to adequately prepare for the Code mandated mediation which is to occur 150 days after GM filed its responsive pleading. (Defendant's MPA, p. 7).

The Court finds that Plaintiff has not demonstrated good cause in its failure to comply with the initial discovery set for in Code of Civil Procedure section 871.26. Plaintiff's counsel's representation that the motion is moot as the Plaintiff's deposition has been completed has been challenged by defense as mistaking it for another matter. Pursuant to Code of Civil Procedure section 871.26(j)(2), the Court GRANTS sanctions against Plaintiff's counsel and law firm Strategic Legal Practices, APC in the amount of \$1,5000.00. Plaintiff's counsel is ORDERED to make payment within fifteen (15) business days for failure to comply and producing the Plaintiff for deposition withing 120 days after the defense files of responsive pleadings under subdivision (c)(1).

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel the deposition of the Plaintiff. Plaintiff is to make himself available for deposition within ten (10) days of this hearing. Pursuant to Code of Civil Procedure section 871.26(c), the initial deposition is not to exceed two (2) hours of the Plaintiff.

The Court GRANTS sanctions in the amount of \$1,500.00 against Plaintiff's law firm, Strategic Legal Practices, APC, which is to be paid within fifteen (15) business days from this hearing.

The Court will prepare the formal Order.

Calendar Line # 9
Case Name Theresa Perry vs Emergency Housing Consortium et al
Case No. 25CV482065
Motion to Strike Fraudulent Attorney’s Lien and Compel Settlement Disbursement <u>I. BACKGROUND</u> On December 15, 2025, Plaintiff Theresa Perry filed a Complaint against “Defendants Emergency Housing Consortium[,] Home First Services[,] Sabrato Family Living Center[,] John C. Miller Jr. Esq (State Bar 143323) [,] E. Forrest Shryock Jr. [,] Vogl Meredith Burke Streza LLP[,] Umid Babjonov, Esq. [,] Vogl Meredith Burke[,] Jane Hart Esq. [,]Vogl Meredith Burke[,]and Thomas S Gelini, Esq. [,] and Kevin Lewis (collectively “Defendants”). Plaintiff seeks monetary and punitive damages. Plaintiff does not allege specific causes of actions, but asserts fraudulent liens. No proof of service of the summons and complaint has been established. Defendants have not filed Answer or filed responsive pleadings. On January 8, 2026, Plaintiff filed this present Motion to Strike Fraudulent Attorney’s Liens and Compel Settlement Disbursement. The motion was accompanied by a proof of electronic service to John C. Miller, Jr., Esq, E. Forrest Shyrock, Jr., Esq., Jane Hart, Esq., Umid Babajanov, Esq., Thomas S. Gellini, Esq., Kevin Lewis, Shannon Pinckney, Sara Steele, Taylor Alves, and Jessica McDonald on that same day. The Court has reviewed Plaintiff’s notice and motion (totaling 10 pages); Declaration of Theresa Perry (totaling 4 pages); proof of service; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 415.10 provides the requirements of personal service of summons and the complaint as follows: A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery. The date upon which personal delivery is made shall be entered on or affixed to the face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective. (Code Civ. Proc., § 415.10). Code of Civil Procedure section 415.20 governs substituted service. Subdivision (a) applies to substituted service at an office or usual mailing address. Subdivision (b) applies to substituted service at a person’s residence and provides, in part: If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served ... a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons

and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing. (Code Civ. Proc., § 415.20, subd. (b)).

Code of Civil Procedure section 416.10 provides:

A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods:

(a) To the person designated as agent for service of process as provided by any provision in Section 202, 1502, 2105, or 2107 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable).

(b) To the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.

(c) If the corporation is a bank, to a cashier or assistant cashier or to a person specified in subdivision (a) or (b).

(d) If authorized by any provision in Section 1701, 1702, 2110, or 2111 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable), as provided by that provision. (Code Civ. Proc., § 416.10).

III. ANALYSIS

Here, the case is not yet at issue as service of the summons and complaint has not been effectuated under Code of Civil Procedure sections 415.10, 415.20, and 416.10. Defendants have not waived service or consented to electronic service. No Answers or responsive pleadings have been filed.

Give this posture, Plaintiff's proof of electronic mail service of this motion is not proper pursuant to California Code of Civil Procedure sections 1010.6 and 1005(c).

Based on these deficiencies, the Court cannot continue to consider the merits of the motion.

IV. CONCLUSION

Based on the foregoing, the motion is DENIED.

The Court will prepare the formal Order.